

# **Contoso Corp Equal Employment Opportunity and Anti-Harassment Policy**

## **Equal Employment Opportunity Statement**

Contoso Corp provides equal employment opportunity to all employees and applicants without regard to race, color, religion, sex, national origin, age, disability, genetic information, veteran status, sexual orientation, gender identity, or any other status protected by applicable law. This commitment applies to hiring, promotion, compensation, and every other term of employment.

This commitment extends beyond the characteristics listed above to include marital status, pregnancy, citizenship status where legally protected, and any other characteristic protected under the law of the jurisdiction where an employee works, since legal protections vary by state and country and Contoso applies the broadest applicable protection rather than a single global list.

Equal employment opportunity applies to every stage of the employment relationship, including recruiting, interview scoring, offer terms, access to training and stretch assignments, promotion decisions, and the terms of a separation. Managers are expected to be able to explain any employment decision based on job-related factors alone.

Contoso reviews aggregate hiring, promotion, and pay data at least annually, without reviewing individual cases, to identify any statistical patterns that might indicate unequal treatment across protected groups, and shares a summary of that review with the executive leadership team.

Managers receive training on structured, job-related interviewing and decision-making as part of their onboarding into a people-manager role, and refresher training periodically thereafter, to reduce the risk that an unconscious bias affects an employment decision.

Contoso extends this commitment to every stage of a candidate's journey as well, including how job postings are written, how sourcing outreach is conducted, and how interview panels are assembled, so that equal opportunity begins before an individual ever becomes an employee.

Job postings are reviewed to remove language that could unintentionally discourage qualified candidates from a particular group from applying, such as requirements not actually necessary for the role or phrasing that research shows skews applicant pools by gender.

Contoso's commitment to equal employment opportunity is documented in its standard EEO policy statement filed with relevant government agencies where required, and this handbook-level policy reflects that same underlying commitment applied to Contoso's internal practices.

This policy applies uniformly across Contoso's Northlake headquarters and its Austin and Dublin offices, though the specific legal protections referenced in any individual case are determined by the employment laws of the country and state or region where the affected employee is based, and HR maintains jurisdiction-specific guidance to support that determination.

Equal employment opportunity is also reflected in how Contoso designs its benefits programs, its performance calibration process, and its succession planning, each of which is periodically reviewed to confirm that outcomes are not skewed toward or against any protected group in ways that cannot be explained by job-related performance and business need.

Contractors, interns, and temporary staff engaged through a staffing agency are covered by the spirit of this policy while working alongside Contoso employees, and any concern about the treatment of a non-employee worker should be raised with HR, which will coordinate with the relevant staffing agency or vendor as appropriate.

New employees receive an overview of this policy during orientation, and are directed to the full text of this policy, the Contoso Corp Employee Handbook, and the Contoso Corp Diversity, Equity, and Inclusion Policy as reference material that together describes Contoso's expectations around fair and respectful treatment in the workplace.

Vendors and contractors who provide staffing, recruiting, or interview-panel services to Contoso are contractually required to apply comparable non-discrimination standards in their own practices when representing Contoso, and Contoso's procurement team periodically reviews vendor compliance with this expectation as part of standard vendor governance.

## **Prohibited Harassment**

Harassment under this policy is evaluated from the perspective of a reasonable person in the position of the employee affected, not solely from the intent of the person whose conduct is in question; conduct that was not intended to offend can still violate this policy if it created a hostile environment.

This policy applies regardless of where the conduct takes place, including at Contoso offices, client sites, offsite events such as team dinners or conferences, and in any Contoso-affiliated online space, since a hostile environment can form outside the physical office just as easily as within it.

Contoso distinguishes between the severity of an incident and the number of times it occurs; both a single severe act and a pattern of lower-severity conduct can independently establish a policy violation, and HR evaluates each report on its specific facts rather than applying a fixed threshold of incidents.

## **Sexual Harassment**

Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature are prohibited when they create a hostile work environment or are made a condition of employment or advancement. This applies to conduct by coworkers, managers, and third parties such as vendors or customers.

Examples of prohibited conduct include unwanted physical contact, repeated requests for a date after being told no, sexually suggestive comments or images shared in any Contoso communication channel, and conditioning a work opportunity, whether explicitly or implicitly, on a romantic or sexual relationship.

A single severe incident, such as unwanted physical contact, can violate this policy even without a pattern of repeated conduct; harassment does not require multiple incidents to be actionable.

Consensual romantic relationships between coworkers who do not have a reporting relationship are not themselves a policy violation, but any relationship between an employee and someone in their direct or indirect reporting line must be disclosed to HR so reporting lines can be adjusted.

Third-party harassment, meaning harassment by a customer, vendor, or another non-employee encountered through work, is addressed under this policy the same way as harassment by a coworker; Contoso will take appropriate action with the third party's employer or organization where the harasser is not a Contoso employee.

An employee who witnesses sexual harassment directed at a colleague, even if not personally targeted, is encouraged to report what they observed rather than assuming the affected colleague will necessarily report it themselves.

A supervisor who becomes aware of potential sexual harassment involving their team, whether by direct observation or because an employee mentioned it informally, is required to report it to HR rather than attempting to resolve it independently or deciding it is not serious enough to escalate.

Quid pro quo harassment, where a work benefit such as a promotion, raise, or favorable assignment is offered or withheld based on a romantic or sexual response, is treated as one of the most serious categories of misconduct under this policy and typically results in immediate suspension of the alleged harasser pending investigation.

Sexual harassment conducted through Contoso's messaging, video-conferencing, or file-sharing systems, including sending unsolicited sexual images or comments during a virtual one-on-one meeting, is investigated with the same rigor as in-person conduct, and relevant message logs are preserved by IT as part of the evidentiary record once a complaint is opened.

Harassment that occurs at an offsite event where alcohol is served, such as a team celebration or client dinner, is not excused by the informal setting; Contoso holds employees to the same conduct standard at company-sponsored social events as it does in the office.

Where a complaint involves an employee and a client or business partner representative, HR coordinates with the relevant Contoso account owner and, where appropriate, the partner organization's own HR function, while keeping the complainant informed of any external coordination that affects them directly.

An employee who is uncertain whether a specific interaction rises to the level of sexual harassment is encouraged to raise the question with HR informally before deciding whether to file a formal complaint, and such informal consultations are not treated as triggering the formal investigation timeline described later in this policy.

## **Other Forms of Harassment**

Harassment based on any protected characteristic, including offensive jokes, slurs, or exclusionary behavior, is prohibited regardless of whether it rises to the level of a hostile work environment under

the law. Contoso holds itself to a higher standard than the legal minimum.

This includes harassment based on race, religion, national origin, disability, age, or any other protected characteristic, whether directed at a specific individual or expressed more generally in a way that creates a hostile environment for people who share that characteristic.

Harassment can occur through any medium, including in-person conduct, messages in Contoso chat and email systems, comments made during a virtual meeting, or posts on social media that are directed at a coworker or reference the workplace.

Isolated, genuinely minor incidents, such as a single tasteless joke that is immediately corrected when raised, are generally addressed through direct coaching rather than a full investigation, but any pattern, or any single serious incident, is investigated under the process below regardless of how minor the individual acts might seem in isolation.

Age-based harassment, including comments suggesting an employee is too old or too young for their role or for taking on new responsibilities, is treated the same as harassment based on any other protected characteristic under this policy.

Harassment based on a disability includes mocking a visible or disclosed condition, as well as excluding an employee from work activities based on assumptions about their capabilities rather than their actual documented accommodation needs.

Contoso's higher-than-legal-minimum standard means that even conduct a court might ultimately find insufficient to establish a legal hostile-work-environment claim can still result in discipline under this policy if it is inconsistent with the respectful workplace Contoso expects.

Harassment based on religion includes mocking an employee's religious dress, dietary practices, or observance of a holiday, as well as pressuring an employee to participate in a religious or explicitly non-religious activity they have indicated they do not wish to take part in; questions about balancing religious observance with work schedules are addressed under the Contoso Corp Workplace Accommodation and Anti-Discrimination Policy.

National-origin harassment includes mocking an employee's accent, name, or manner of speaking English, as well as comments suggesting an employee should return to another country regardless of their citizenship or immigration status; such comments are treated as serious violations even when framed by the speaker as humor.

Harassment based on gender identity or expression includes the persistent, intentional use of a name or pronoun other than the one an employee has asked colleagues to use, as well as comments about an employee's appearance framed around their gender identity; Contoso expects managers to model correct usage and to address repeated misuse promptly.

Exclusionary behavior, such as consistently leaving a specific employee off informal team communications, meeting invitations, or social gatherings in a way connected to a protected characteristic, is treated as a form of harassment under this policy even where no single comment or incident can be pointed to in isolation.

Harassment expressed through generalized statements about a group, rather than directed at a specific coworker, is still prohibited where it creates a hostile environment for employees who share the targeted characteristic; the absence of a named target does not make the conduct acceptable.

Managers and employees are expected to apply this policy consistently regardless of whether the individual affected is in the majority or minority group within their team or office location, since a hostile environment can form around any protected characteristic in any local context.

## **Reporting and Investigation Process**

Every report is taken seriously regardless of the seniority of the person it concerns, including reports involving a senior leader; in those cases, the investigation is led by a member of the HR investigations team who does not report, directly or indirectly, to the person named in the complaint.

Contoso's reporting process is designed to give an employee multiple entry points so that no one is forced to raise a sensitive concern with a person they do not trust; an employee may always choose the channel, whether HR, a manager, or the confidential portal, that feels safest to them.

Reports involving conduct by an external party, such as a vendor representative or client employee, follow the same intake and investigation standards described in this section, with HR taking the lead role even when a Contoso manager is also informed because the incident occurred during a client engagement.

### **How to File a Complaint**

Complaints may be filed with HR, with any manager, or through the confidential HR case portal. You do not need to raise a concern with the person involved before filing a complaint.

Complaints can be submitted verbally or in writing, and a witness to harassment, not only the person directly affected, may also file a complaint. HR will still look into a complaint even if the person most directly affected does not want to participate in the investigation, though the scope of the response may be limited without their cooperation.

There is no deadline for filing a complaint under this policy, though HR notes that complaints filed closer to when the conduct occurred are generally easier to investigate because evidence and witness recollection are fresher.

Once a complaint is filed, the complainant receives a same-week acknowledgment from HR confirming that the complaint was received and describing the general process and timeline, without yet describing specific investigative steps that might compromise the investigation.

A complaint can also be filed by a third party who is not a Contoso employee, such as a customer or vendor representative, if the concern involves the conduct of a Contoso employee toward them.

HR maintains a list of trained investigators independent of any single business unit, so that a complaint involving a specific team is not investigated by someone who reports into that same team's leadership chain.

An employee filing a complaint is not required to have already discussed the concern with their manager, and may go directly to HR or the confidential portal at any point, including the same day the conduct occurred.

The confidential HR case portal allows an employee to submit a complaint anonymously, though HR notes that anonymous complaints can be harder to investigate fully since follow-up questions cannot be directed back to the complainant, and encourages employees who are comfortable doing so to identify themselves to HR even if they prefer their identity not be shared with the person the complaint concerns.

Employees based in the Dublin office may also raise a complaint with the local HR business partner or through Contoso's regional employee relations contact for the Europe, Middle East, and Africa region, both of whom coordinate directly with the central HR investigations team to ensure a consistent process regardless of location.

A complaint may be filed about conduct that occurred at a prior employer or during a prior role at Contoso if it continues to affect the complainant's current working relationship, such as an ongoing pattern of contact from a former manager who has since moved to a different team.

Employees are not required to use a specific form or template to file a complaint; a description in the employee's own words, whether typed into the portal, sent by email, or delivered verbally to HR, is sufficient to open an investigation, and HR will ask clarifying questions as needed rather than rejecting an informally worded complaint.

## **Investigation Timeline**

HR aims to complete a preliminary assessment within 5 business days of a complaint and to conclude most investigations within 30 calendar days. Complex investigations involving multiple witnesses may take longer, and the complainant is updated on status throughout.

A typical investigation includes separate interviews with the complainant, the person the complaint concerns, and any relevant witnesses, along with review of any relevant documents or messages. Interview notes are kept confidential and shared only with those who need them to make a decision.

At the conclusion of an investigation, both the complainant and the person the complaint concerned are informed of the outcome in general terms, such as whether the complaint was substantiated, without necessarily disclosing the specific disciplinary action taken against another employee, which is treated as confidential personnel information.

If new information comes to light after an investigation has concluded, either party can ask HR to reopen it; HR evaluates whether the new information is material before deciding whether to do so.

Interim measures, such as temporarily adjusting reporting lines, seating, or meeting schedules, may be put in place during an investigation to protect the complainant and preserve the integrity of the process, without those measures implying a conclusion about the outcome.

HR documents each investigation's findings and the reasoning behind the outcome in a confidential case file, retained according to Contoso's records retention schedule, independent of whether the

complaint was substantiated.

If an investigation is delayed beyond the general 30-day target, HR provides the complainant with a status update explaining the reason for the delay rather than allowing the timeline to pass without any communication.

Where an investigation requires input from an outside expert, such as a forensic review of electronic communications or an external employment counsel, the 30-calendar-day target is treated as a general goal rather than a hard deadline, and HR communicates a revised estimated timeline to the complainant once the need for outside input is identified.

Investigations that involve a complaint against a member of the executive leadership team are automatically escalated to Contoso's General Counsel and, where warranted, to a designated member of the Board of Directors, in addition to the standard HR investigations team, to ensure an appropriate level of independence.

HR may temporarily separate the complainant and the person the complaint concerns during the pendency of an investigation, for example by adjusting one party's temporary work location or meeting attendance, and will explain the reason for any such adjustment to both parties in general terms.

## **Interim Measures**

Interim measures are protective steps HR may put in place once a complaint is opened and before an investigation concludes, intended to reduce the risk of continued harm or retaliation while the facts are still being established, and are not themselves a finding that the complaint is or is not substantiated.

Common interim measures include temporarily adjusting a reporting relationship so the complainant and the person the complaint concerns do not directly interact, modifying meeting attendance or seating arrangements, and, where appropriate, temporarily reassigning either party to a different project for the duration of the investigation.

In more serious cases, such as an allegation involving physical conduct or a credible safety concern, HR may place the person the complaint concerns on paid administrative leave while the investigation proceeds; this is treated as a neutral precaution rather than a disciplinary action and does not appear in the employee's file as discipline unless the complaint is later substantiated.

Interim measures are reviewed by HR at regular intervals throughout an investigation and are lifted or adjusted as circumstances change, such as when a witness interview reduces the perceived urgency of a particular precaution or when the investigation concludes.

An employee who believes an interim measure has been applied unfairly to them, for example being asked to work remotely while a complaint is pending, may raise that concern with HR, which will explain the reasoning behind the measure without disclosing details of the underlying investigation that would compromise its integrity.

## **Disciplinary Outcomes**

Where an investigation substantiates a violation of this policy, Contoso applies discipline proportionate to the severity of the conduct, the individual's role, and whether there is a prior relevant record, ranging from a documented verbal coaching conversation through a formal written warning, a final warning, demotion, or termination of employment.

A single severe incident, such as a physical assault or a clear quid pro quo demand, typically results in termination regardless of the offending employee's tenure or prior performance record, consistent with the standards described in the Contoso Corp Code of Conduct and Business Ethics Policy.

Where the person found to have violated this policy is a people manager, Contoso considers whether the conduct also reflects a broader failure of managerial judgment, which may result in removal of people-management responsibilities in addition to any other discipline applied.

Discipline decisions are reviewed by HR and, for the most serious outcomes such as termination, by a member of the legal team, to confirm that the proposed action is consistent with how comparable substantiated cases have been handled elsewhere at Contoso.

An employee subject to discipline under this policy may use Contoso's standard internal appeal process, described in the Contoso Corp Employee Handbook, to request a review of the decision by a manager or HR representative who was not involved in the original investigation.

Where an investigation does not substantiate the specific complaint but identifies a lower-level concern, such as conduct that was unprofessional without meeting the threshold for a policy violation, HR may still recommend coaching or a documented conversation with the relevant manager to address the underlying behavior.

## **Non-Retaliation**

Retaliation against anyone who reports harassment or discrimination in good faith, or who participates in an investigation, is itself a violation of this policy and is grounds for discipline up to termination.

An employee who believes they have experienced retaliation for raising a harassment or discrimination concern can report the retaliation itself as a separate matter, and it is investigated with the same urgency as an original harassment complaint.

Managers whose team members have participated in an investigation, whether as a complainant, respondent, or witness, receive guidance from HR on how to continue managing that person normally, to avoid even the appearance of a changed dynamic that could be perceived as retaliatory.

Non-retaliation protections extend to any employee who supports a complainant informally, such as a coworker who accompanies them to a meeting with HR or who is asked to corroborate part of their account.

HR periodically reviews outcomes for employees who have participated in a harassment investigation, such as subsequent performance ratings or role changes, specifically to check for patterns that might indicate undetected retaliation.



An employee is protected under this policy even if their underlying harassment or discrimination complaint is ultimately not substantiated, as long as the complaint was made in good faith rather than knowingly false.

Retaliation is not limited to formal actions such as termination or demotion; subtler conduct, including exclusion from meetings the employee previously attended, a sudden reduction in desirable assignments, or a marked change in a manager's tone toward the employee following a complaint, can also constitute retaliation if connected to the protected activity.

Contoso applies a heightened level of scrutiny to any negative employment action taken against an employee within the twelve months following their participation in a harassment or discrimination investigation, requiring the manager proposing the action to document the independent, non-retaliatory business justification before HR will approve it.

A knowingly false complaint, meaning one the complainant understood to be untrue at the time it was made rather than one that simply could not be substantiated, is treated as a separate matter of dishonesty under the Contoso Corp Code of Conduct and Business Ethics Policy and may itself result in discipline, though this is distinct from, and applied far less often than, cases where a good-faith complaint is simply not substantiated by the evidence available.

An employee who feels pressured by a manager or coworker to withdraw a complaint, alter their account, or decline to cooperate with an investigation should report that pressure to HR immediately, since attempting to influence a complainant's or witness's participation is itself treated as a serious form of retaliation.

## **Manager Responsibilities**

Every Contoso manager, regardless of level, has an affirmative obligation under this policy to escalate any potential harassment or discrimination concern they become aware of to HR, whether the concern was raised directly with them, overheard, or observed, rather than attempting to resolve it informally within the team.

A manager who fails to escalate a known or suspected violation of this policy is themselves subject to discipline for that failure, independent of any discipline that results from the underlying harassment complaint once it is investigated.

Managers are expected to model the behavior described in this policy in their own conduct, including how they give feedback, how they structure one-on-one meetings, and how they handle disagreements with team members, since a manager's conduct sets the tone their direct reports observe most closely.

When a manager is uncertain whether something they observed or were told rises to the level of a reportable concern, they are expected to consult HR to make that determination jointly rather than deciding on their own not to escalate; HR would rather review a borderline situation than have a manager guess incorrectly.

Managers involved in hiring, promotion, or compensation decisions are expected to be able to articulate the job-related criteria behind each decision, and HR periodically audits a sample of these decisions across business units to confirm that documented criteria, rather than subjective impression alone, drove the outcome.

A manager who receives a complaint about their own conduct is required to refer the complainant directly to HR rather than attempting to address the concern themselves, and must not take any action, positive or negative, toward the complainant's role or assignments until HR has reviewed the matter.

Managers relocating between Contoso's Northlake, Austin, and Dublin offices, or taking on responsibility for a team in a different location, receive a refresher briefing on any jurisdiction-specific nuances of this policy that apply to their new team, since certain reporting obligations and protected categories vary by location.

Performance reviews for people managers include an explicit component evaluating whether the manager has fostered a respectful, inclusive team environment, informed in part by confidential engagement survey data and, where relevant, any substantiated findings from investigations involving their team.

## **Recordkeeping and Confidentiality**

Complaint intake records, investigation notes, and outcome documentation are maintained by HR in a restricted-access case management system, separate from an employee's general personnel file, and are accessible only to individuals with a documented need to know, such as the assigned investigator, HR leadership, and legal counsel where involved.

Information gathered during an investigation is shared on a need-to-know basis only; witnesses are told only as much about the complaint as is necessary to answer relevant questions, and are separately reminded not to discuss the investigation with coworkers while it remains open.

Investigation case files are retained in accordance with Contoso's records retention schedule, generally for a period sufficient to support any subsequent legal, regulatory, or internal audit need, after which they are securely deleted or archived according to Contoso's data governance standards.

Where a substantiated complaint results in formal discipline, a summary of the outcome is placed in the disciplined employee's personnel file, while underlying investigation materials such as witness interview notes remain in the separate, more restricted case management system rather than the general personnel file.

Aggregate, de-identified data about the number and general category of harassment and discrimination complaints received each year is reported to the executive leadership team and summarized for the Board of Directors, without identifying individual complainants or respondents, to support Contoso's broader efforts described in the Contoso Corp Diversity, Equity, and Inclusion Policy.

Requests from outside parties, including a government agency, opposing counsel in litigation, or a prospective employer conducting a reference check, for information related to a harassment complaint or investigation are directed to HR and legal counsel, who determine what, if anything, may be disclosed consistent with applicable law and Contoso's confidentiality obligations.

An employee who has participated in an investigation, whether as a complainant, respondent, or witness, may request a general summary of the outcome that pertains to them, though HR may decline to share certain investigative details, such as another witness's specific statements, where doing so could compromise confidentiality or chill future reporting.